

Tamil Nadu Drugs (Control) Act, 1949

Source: <https://indiankanoon.org/doc/17763260/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

5

]

State of Tamilnadu- Act

Tamil Nadu Drugs (Control) Act, 1949

TAMILNADU

India

Tamil Nadu Drugs (Control) Act, 1949

Act 30 of 1949

Published on 13 December 1949

Commenced on 13 December 1949

[This is the version of this document from 13 December 1949.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Drugs (Control) Act, 1949

(Tamil Nadu Act

30 of 1949

)

Statement of Objects and Reasons - Madras Drugs (Control) Amendment Act, 1951 (Tamil Nadu Act XXVII of 1951). -

Section 12 of the Madras Drug (Control) Act, 1949 (Madras Act XXX of 1949) provides inter alia for drugs being requisitioned and acquired on payment of such compensation as may be prescribed by rules made under the Act. The

Central Act on the subject, which applies to Part C States (XXVI of 1950) takes no such powers; and the Board of Revenue has reported that there is no need for the powers in this State also, as the drugs market here is fairly steady.

The Bill accordingly seeks to omit the provisions dealing with this matter from the Madras Act.

Published in Fort St. George Gazette Extraordinary on the 3rd April 1951.

Received the assent of the Governor-General on the 13th December 1949 and first published in the Fort St. George Gazette Extraordinary on the 15th December 1949.

An Act to provide for the control of the sale, supply and distribution of drugs.

Whereas it is necessary to provide for the control Of the sale, supply and distribution of drugs in the [State of Tamil Nadu]

[Substituted for the expression 'Province of Madras ' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1970.]

; It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second amendment) Order, 1969.]

Drugs (Control) Act, 1949.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Substituted for the expression ' Province of Madras' by paragraph 3(2) of the Tamil Nadu Adaptation of Laws Order, 1970.]

.

(3)

It shall come into force at once.

2.

Interpretation.

(1)

In this Act, unless there is any thing repugnant in the subject or context,-

(a)

"Commissioner" means the [Commissioner of Civil Supplies, Tamil Nadu]

[Substituted for the expression 'Commissioner of Civil Supplies, Madras ' by paragraph 3 of, and the Schedule to, the Tamil Nadu adaptation of Laws Order, 1970.]

;

(b)

"dealer" means a person carrying on, either personally or through any other person, the business of selling any drugs, wholesale or in retail;

(c)

"drug" means any drug as defined in clause (b) of section 3 of the Drugs Act, 1940 (Central Act XXIII of 1940), in respect of which a declaration has been made under section 3;

(d)

"Gazette" means the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

;

(e)

"offer for sale" includes a reference to an intimation by a person of the price proposed by him for a sale of any drug, made by the publication of a price list, by exposing the drug for sale in association with a mark indicating price, by the furnishing of a quotation or otherwise howsoever;

(f)

"producer" includes a manufacturer.

(2)

A drug shall be deemed to be in the possession of a person-

(i)

when it is held on behalf of that person by another person;

(ii)

notwithstanding that it is mortgaged to another person,

3.

Drugs to which this Act applies.

- The [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may, by notification in the Gazette, declare any drug to be a drug to which this Act shall apply.

4.

Fixing of maximum prices and maximum quantities which may be held or sold.

(1)

The Commissioner may, by notification in the Gazette, fix in respect of any drug-

(a)

the maximum price or rate which may be charged by a dealer or producer;

(b)

the maximum quantity which may, at any one time be, possessed by a dealer or producer;

(c)

the maximum quantity which may, in any one transaction, be sold to any person.

(2)

The prices or rates and the quantities fixed in respect of any drug under this section may be different in different localities or for different classes of dealers or producers.

5.

Restrictions on sale, etc., where maximum is fixed under section 4.

- No dealer or producer shall-

(a)

sell, agree to sell, offer for sale or otherwise dispose of to any person any drug for a price or at a rate exceeding the maximum fixed by notification under clause (a) of sub-section (1) of section 4;

(b)

have in his possession at any one time a quantity of any drug exceeding the maximum fixed by notification under clause (b) of sub-section (1) of section 4; or

(c)

sell, agree to sell or offer for sale to any person in any one transaction a quantity of any drug exceeding the maximum fixed by notification under clause (c) of sub-section (1) of section 4.

6.

General limitation on quantity which may be possessed at one time.

(1)

No person shall have in his possession at any one time a greater quantity of any drug to which this section applies than the quantity necessary for his reasonable needs.

(2)

This section shall apply only to such drugs as the Commissioner may, by order published in the Gazette, specify for the purpose:

Provided that nothing contained in this section shall apply to a dealer or producer in respect of any drug sold or produced by him.

7.

Duty to declare possession of excess stocks.

- Any person having in his possession a quantity of any drug exceeding that permitted by or under this Act shall forthwith report the fact to the Commissioner or other officer empowered in this behalf by the Commissioner, and shall take such action as to the storage, distribution or disposal of the excess quantity as the Commissioner may direct.

8.

Refusal to sell.

- No dealer or producer shall, unless previously authorized to do so by the Commissioner, without sufficient cause, refuse to sell to any person any drug within the limits as to quantity, if any, imposed by this Act.

Explanation. - The possibility or expectation of obtaining a higher price for a drug at a later date shall not be deemed to be a sufficient cause for the purpose of this section.

9.

Cash memorandum to be given of certain sales.

(1)

Every dealer or producer when selling any drug for cash shall, if the amount of the purchase is five rupees or more, in all cases, when so requested by the purchaser, give to the purchaser a cash memorandum containing particulars of the transaction.

(2)

The Commissioner may, by notification in the Gazette, prescribe the particulars to be contained in any such cash memorandum.

(3)

The Commissioner may, by notification in the Gazette, exempt specified areas, classes of dealers or producers, or classes of drugs from the operation of this section.

10.

Marking of prices and exhibiting price list.

(1)

The Commissioner may direct dealers or producers in general, or any dealer or producer in particular, to mark any drug exposed or intended for sale with the sale prices or to exhibit on the premises a price list of drugs held for sale, and may further give directions as to the manner in which any such direction as aforesaid is to be carried out.

(2)

No dealer shall destroy, efface or alter any label or mark affixed to a drug and indicating the price marked by a producer.

11.

Obligation to state price separately on composite offer.

- Where a dealer or producer makes an offer to enter into a transaction for a consideration to be given as a whole in respect both of a sale of any drug and of some other matter, the dealer or producer making the offer shall state in writing the price which he assigns to that drug, if he is required to do so by any person to whom the offer is made, and the offer shall be deemed, for the purposes of this Act, to be an offer to sell that drug at the price so stated.

12.

[Prohibition of sale, etc., and requisitioning of drugs.

[Sub-sections (2) to (5) were omitted and sub-section (I) was re-numbered as section 12 by section 2(1) of the Madras Drugs (Control) Amendment Act, 1951 (Madras Act XXVII of 1951).]

- If in the opinion of the Commissioner it is necessary or expedient so to do, he may, by order in writing,-

(a)

prohibit the disposal of any drug except in such circumstances and under such conditions as may be specified in the order;

(b)

direct the sale of any drug to any such dealer or class of dealers and in such quantities as may be specified in the order;

(c)

[***].

and make such further orders as appear to him to be necessary or expedient in connection with any order issued under this [section]

[Substituted for the word 'sub-section' by the Madras Drugs (Control) Amendment Act, 1951 (Madras Act XXVII of 1951).]

.

13.

Penalties.

(1)

Whoever contravenes any of the provisions of this Act or of any direction made under authority conferred by this Act shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

(2)

A Court convicting any person of an offence punishable under this Act may order that the whole or any part of the stock of drugs in respect of which the offence was committed shall be forfeited to the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government.

(3)

It shall be a defence for a person charged with a contravention of any of the provisions of this Act to prove that, in relation to the matter in respect of which he is charged, he acted in the course of his employment as a servant or agent of another person on the instructions of his employer or of some other specified person.

14.

Offences by Corporations.

- Where a person committing an offence punishable under this Act is a company or an association or a body of persons, whether incorporated or not, every director, manager, secretary, agent or other officer or person concerned with the management thereof, shall, unless he proves that the offence was committed without his knowledge or that he has exercised all due diligence to prevent its commission, be deemed to be guilty of such offence.

15.

Procedure.

(1)

No person shall investigate any offence under this Act, unless he is-

(a)

a Police Officer of or above the rank of an Inspector of Police, or

(b)

an officer of any department other than the Police who is authorized in this behalf by the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government by notification in the Gazette.

(2)

No prosecution for any offence punishable under this Act shall be instituted except with the previous sanction of the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government or such officer as they may, by notification in the Gazette, authorise in this behalf.

16.

Powers of search and seizure.

- Any person competent to investigate any offence under this Act may search any place in which he has reason to believe that an offence under this Act has been, or is being, committed, and take possession of any stock of drugs in respect of which the offence has been, or is being committed.

17.

Power to make rules.

(1)

The [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may make rules to carry out the purpose of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters* namely:-

(a)

the maintenance by dealers and producers generally, or by an dealer or Producer in particular, of records of all sale and purchase transactions made by them;

(b)

the furnishing of any information as may be required with respect to the business carried on by any dealer or producer;

(c)

the inspection of any books of account or other document belonging to or under the control of any dealer or producer.

(d)

[***.]

[Omitted by section 2(3) of the Madras Drugs (Control) Amendmer Act, 1951 (Madras Act XXVII of 1951)]

18.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against an person for anything in good faith done or intended to be done under this Act.

19.

Saving of other laws.

- The provisions of this Act shall be in addition to and not in derogation of any other law for the time being in force regulating any of the matters dealt with in this Act.

20.

Repeal and saving.

(1)

The Madras Drugs (Control) Ordinance, 1949 (Madras Ordinance I of 1949), is hereby repealed.

(2)

Notwithstanding such repeal, any rules made, notifications c orders issued, action taken, or thing done in the exercise of any power conferred by or under the said Ordinance shall be deemed to have bee made, issued, taken or done in the exercise of the powers conferred by or under this Act as if this Act had come into force on the 3rd day of October 1949.

Related AI tags, queries and research notes

Translation